ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	70th Commission Meeting
DATE:	08 March 2022
TIME:	2:00 PM
VENUE:	Virtual (https://meet.google.com/fgc-vayy-ofi)

#	AGENDA	DECISIONS
1	Present the brief on Hard Facts– PPS, SS	In order to create wider awareness and deterrence against corruption, the ACC started publishing *Hard Facts* on cases adjudicated by the Court. A total of four ***Hard Facts*** has been published and shared to the public through the ACC's social media platforms (Facebook, Instagram and Twitter) until date. However, the Commission also plans to publish given facts on the cases after completion of the investigation, the cases referred to the agencies for administrative action, forwarded to the Office of the Attorney General (OAG) and, adjudicated by the Court will be published as *Hard Facts* hereon. Therefore, in order to provide guide while drafting the *Hard* Facts, PPS developed the elements/component that needs to be included in the *Hard Facts* (*as attached in Annex 1*). The same was shared with Management for their comments before apprising the Commission. The Commission adopted the elements/component that needs to be included in the *Hard Facts* based on the three identified categorized. Some specific directions were to: - Add more detail on the last to category, i.e. cases referred to the agencies; - Be careful with the terms to be used especially on cases for which the court have not passed its judgement; - Include TAT of the cases referred; - Explore possibility to publish *Hard Facts* in pictograph as suggested by Management team; - Revise the last sentence to include that the Hard Facts would not only be prepared and issued whenever required by the Commission but also that the departments/divisions shall also be responsible to propose topics for Hard Facts as found relevant and necessary. Moreover, the cases of public interest should be expedited and published at the earliest in order to avoid misinformation. Apart from the comments on the *Hard Facts*, the Commission also noted that PPS should make quarterly report of facts and figures on cases investigated, referred to OAG, pending at Courts etc.

2.	Update on the proposal for Bhutan Olympic Committee (BOC) to join International Partnership Against Corruption in Sports (IPACS)- PPS, SS	Upon the direction of the 69th Commission Meeting, the PPS apprised the Commission on the proposal sent to BOC to join IPACS in February 2021. Based on the latest information, BOC informed that the proposal to join IPACS has been kept on hold until further assessment by the agency. However, Education Divsion is already in talk with Department of Youth and Sports, MoE and Bhutan Football Federation to conduct sessions during their training programs. While acknowledging the decision of BOC not to join IPACS at the moment, however also noting the risk of corruption in sports and the importance of athletic representing the country to display highest level of integrity, Chairperson directed the Commissioner-in charge to look at other alternatives to bring BOC on board.
3.	Apprise RCSC's decision on follow up of deferral of Thinley Tobgay's LTT- Head, SS	As a prerequisite of the Master program, Thinley Tobgay attended five-months English course from February 2021 and completed on 9 July 2021. As per the course schedule, the candidate was supposed to commence his Master Program from 18 August 2021. However, due to online classes and the subject being technical, the candidate requested the university to reduce the course module. Nonetheless, the university refused to reduce the module instead, the university provide the option to defer the course for one year. Thus, in the interest of the time, he sought the verbal approval form the RSCS official and applied for deferment on 11 August 2021 and subsequently received the Confirmation of Enrolment on 13 August 2021. On 14 August 2021 he joined office. The 28th HRC conveyed on 18th August 2021 decided to recommended to RCSC owing to the pandemic situation and challenges faced while taking online course, study load and also the option provided by the University. The 6th PMU and 4th PSC of ADA project also confirmed that the master program must be completed by June 2023, irrespective of the duration of the course. Accordingly, the decision of the HRC was communicated to RCSC for consideration. However, as per the decision of 105th commission meeting hel on 24 August 2021, the RCSC regretted that there are other civil servants perusing the LTT online in the similar situations and the reason for the course adjustment do not seem to be beyond his control. Since the college admission was closed and the candidate has already resumed work at office, the Chair of HRC in line with the decision of the 30th HRC, resubmitted to Commissioner in-charge at RCSC on 9 September 2021. Nonetheless, the deferment was again regretted during 45th RCSC's Commission meeting held on 1 March 2022. Therefore, the 45th HRC deliberated on the RCSC's response after 6 months and decided to put up to Commission for further action as Thinley Tobgay has been working since 14 August 2021, the course has been already deferred and his 45% allowance was withheld. The

		Commission decided to talk with RCSC Commission to reconsider their decision. However, Commission reminded that such a situation should be avoided in future.
4.	Others: Meet with staff of Regional Offices	Since the final list of staff to be placed at the Regional Offices has been endorsed, the Chairperson directed the two Commission members to meet with the staff and iterate their importance in contributing to the vision of the ACC as per the Roadmap.

Commissioner **Commissioner** **Chairperson**